

Tees Conservancy Act, 1956

4 & 5 ELIZ. 2 Ch. xlvii

ARRANGEMENT OF SECTIONS

Section

1. Short and collective titles.
2. Interpretation.
3. Repeal.
4. Present Commissioners continued in office.
5. Constitution of Commissioners.
6. Notwithstanding repeals Commissioners to continue incorporated.
7. Appointment of Commissioner by shipping association.
8. By whom Commissioners to be elected.
9. Officers of customs and excise to make lists of registered shipowners.
10. Scale of votes for registered shipowners.
11. Commissioners to make register of payers of dues.
12. Scale of votes for dues payers for the ports of the Tees.
13. Clerk to Commissioners to make lists.
14. Votes of partners.
15. Revisers of lists to be appointed.
16. Revision of lists.
17. Claims and objections before revisers.
18. Revisers to correct lists.
19. Revisers to sign lists.
20. Production to revisers of books etc.
21. Evidence of revised lists.
22. Continuance of revised lists.
23. Revised lists to be printed and published.
24. Time of meetings for election of Commissioners.
25. Procedure at meetings.
26. Printed copies of lists to be conclusive.
27. Qualification of Commissioners.

Section

28. Mode of voting for and election of Commissioners.
29. Regulations respecting proxies.
30. Result of election to be communicated to clerk.
31. Duration of office of elected Commissioners.
32. Nomination of candidates.
33. Filling up of extraordinary vacancies.
34. Expenses of elections.
35. Costs of Act.

SCHEDULES :

First Schedule.

Second Schedule.



CHAPTER xlvii

An Act to alter the constitution of the Tees Conservancy Commissioners to make further provision with respect to elected Commissioners and the scale of voting at elections of Commissioners by dues payers for the ports of the Tees and for other purposes.

[17th May 1956.]

WHEREAS by the Tees Conservancy Acts 1852 to 1950 the Tees Conservancy Act 1954 and the Tees Conservancy (Deposit of Dredged Material) Act 1954 the Tees Conservancy Commissioners (hereinafter referred to as "the Commissioners") are constituted and incorporated and invested with powers as the harbour authority for the river Tees and for the conservancy improvement and regulation of the said river and for the construction of works and the reclamation of land and for other purposes:

And whereas the Commissioners now consist of twenty-nine members of whom—

three are appointed by the Minister of Transport and Civil Aviation;

one is appointed by the persons rated to the general rate in the parish of Yarm acting by the Yarm Parish Council;

twelve are appointed as follows (namely) four by the council of the county borough of Middlesbrough four by the council of the borough of Stockton-on-Tees and one each by the councils of the boroughs of Redcar and Thornaby-on-Tees and the councils of the urban districts of Billingham and Eston respectively;

one is appointed by the Tees Wharfowners' Association;

one is appointed by the Middlesbrough and District Association of Chartered Shipbrokers ;

ten are elected as follows (namely) four by the shipowners of the ports of the Tees (as defined in the Tees Conservancy Act 1954) four by the Middlesbrough payers of Tees dues (as so defined) and two by the Stockton payers of Tees dues (as so defined) ; and

one is appointed by the British Transport Commission :

And whereas it is expedient to make provision for the alteration of the constitution of the Commissioners and the method of election of Commissioners elected by payers of dues :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short and
collective
titles.

1. This Act may be cited as the Tees Conservancy Act 1956 and the Tees Conservancy Acts 1852 to 1950 the Tees Conservancy Act 1954 and the Tees Conservancy (Deposit of Dredged Material) Act 1954 and this Act may be cited together for all purposes as the Tees Conservancy Acts 1852 to 1956.

Interpretation.

2. In this Act unless the subject or context otherwise requires—

“ the Act of 1946 ” means the Tees Conservancy Act 1946 ;

“ the Act of 1954 ” means the Tees Conservancy Act 1954 ;

“ the appointed Commissioners ” means the persons holding office at the passing of this Act as Commissioners appointed by the Middlesbrough Council and the Stockton Council and the four councils ;

“ the Commissioners ” means the Tees Conservancy Commissioners ;

“ the dues payers for the ports of the Tees ” means persons carrying on business within the ports of Middlesbrough and Stockton and paying within those ports any money in respect of dues tolls or rates leviable under the Tees Conservancy Acts 1852 to 1950 or any enactment amending or extending the same ;

“ the elected Commissioners ” means the persons from time to time elected as Commissioners by the shipowners of the ports of the Tees and the dues payers for the ports of the Tees under the provisions of this Act and includes the persons holding office at the passing of this Act

as Commissioners elected by the shipowners of the ports of the Tees and by the Middlesbrough payers of Tees dues and the Stockton payers of Tees dues ;

“ the four councils ” means the Redcar Council the Thornaby Council the Billingham Council and the Eston Council ;

“ the Middlesbrough Council ” and “ the Stockton Council ”
“ the Redcar Council ” “ the Thornaby Council ” “ the Billingham Council ” and “ the Eston Council ” respectively mean the respective councils of the county borough of Middlesbrough the boroughs of Stockton-on-Tees Redcar and Thornaby-on-Tees and the urban districts of Billingham and Eston ;

“ the Middlesbrough payers of Tees dues ” means persons carrying on business within the port of Middlesbrough and paying within that port any money in respect of dues tolls or rates leviable under the Tees Conservancy Acts 1852 to 1950 or any enactment amending or extending the same ;

“ the Middlesbrough shipowners ” means persons registered by the proper officer of customs and excise as owners or part owners of vessels registered as belonging to the port of Middlesbrough ;

“ the Minister ” means the Minister of Transport and Civil Aviation ;

“ the revisers ” means the persons from time to time appointed in pursuance of the provisions of this Act as revisers of lists of electors entitled to vote as shipowners of the ports of the Tees and as payers of dues for the ports of the Tees ;

“ the shipbrokers ” means the Middlesbrough District Association of Chartered Shipbrokers and “ a shipbroker ” means a member of the said association ;

“ the shipowners of the ports of the Tees ” means the Middlesbrough shipowners and the Stockton shipowners ;

“ the shipping association ” means the Tees Shipping Association ;

“ the Stockton payers of Tees dues ” means persons carrying on business within the port of Stockton and paying within that port any money in respect of dues tolls or rates leviable under the Tees Conservancy Acts 1852 to 1950 or any enactment amending or extending the same ;

“the Stockton shipowners” means persons registered by the proper officer of customs and excise as owners or part owners of vessels registered as belonging to the port of Stockton ;

“the transport commission” means the British Transport Commission ;

“the wharfowners” means the Tees Wharfowners’ Association and “a wharfowner” means a member of the said association ;

“the Yarm Commissioner” means the person holding office at the passing of this Act as Commissioner elected by the Yarm ratepayers ;

“the Yarm ratepayers” means the persons rated to the general rate in the parish of Yarm acting by the Yarm Parish Council.

Repeal.

3. On and after the ninth day of November nineteen hundred and fifty-six the enactments mentioned in the First Schedule to this Act and relating to the constitution and election of Commissioners are hereby repealed.

Present
Commissioners
continued
in office.

4. Notwithstanding any repeal effected by this Act each of the persons holding office as a Commissioner at the passing of this Act shall unless he shall previously die or resign or become disqualified to be a Commissioner continue to hold that office as in this section provided (namely) :—

The Commissioners appointed by the Minister until the ninth day of November nineteen hundred and fifty-six ;

The Yarm Commissioner until the ninth day of November nineteen hundred and fifty-six ;

The appointed Commissioners in accordance with the provisions of section 13 (Appointment of Commissioners by local authorities) of the Act of 1946 ;

The Commissioner appointed by the wharfowners until the ninth day of November nineteen hundred and fifty-six ;

The Commissioner appointed by the shipbrokers until the ninth day of November nineteen hundred and fifty-six ;

The elected Commissioners until the ninth day of November nineteen hundred and fifty-six ;

The Commissioner appointed by the transport commission until the ninth day of November nineteen hundred and fifty-six ;

5.—(1) Notwithstanding any repeal effected by this Act the Constitution of Commissioners shall continue until the ninth day of November nineteen hundred and fifty-six to consist of—

Commissioners.

Three Commissioners appointed by the Minister ;

One Commissioner appointed by the Yarm ratepayers ;

Twelve Commissioners appointed by local authorities as follows :—

By the Middlesbrough Council	...	...	4
By the Stockton Council	...	...	4
By the Redcar Council	...	...	1
By the Thornaby Council	...	...	1
By the Billingham Council	...	...	1
By the Eston Council	...	...	1

One Commissioner appointed by the wharfowners ;

One Commissioner appointed by the shipbrokers ;

Ten Commissioners elected as follows :—

By the shipowners of the ports of the Tees	4
By the Middlesbrough payers of Tees dues	4
By the Stockton payers of Tees dues	2

One Commissioner appointed by the transport commission.

(2) On the ninth day of November nineteen hundred and fifty-six—

(i) there shall be added to the Commissioners one additional Commissioner appointed by the shipping association ;

(ii) the elected Commissioners shall consist of persons elected as follows :—

By the shipowners of the ports of the Tees	4
By the dues payers for the ports of the Tees	6

(3) Accordingly on and after that ninth day of November the Commissioners shall consist of—

Three Commissioners appointed by the Minister ;

One Commissioner appointed by the Yarm ratepayers ;

Twelve Commissioners appointed by local authorities as follows :—

By the Middlesbrough Council	...	...	4
By the Stockton Council	...	...	4
By the Redcar Council	...	...	1
By the Thornaby Council	...	...	1
By the Billingham Council	...	...	1
By the Eston Council	...	...	1

One Commissioner appointed by the wharfowners ;

One Commissioner appointed by the shipbrokers ;

One Commissioner appointed by the transport commission ;

One Commissioner appointed by the shipping association ;

Ten Commissioners elected as follows:—

By the shipowners of the ports of the Tees 4

By the dues payers for the ports of the Tees 6

Notwith-
standing
repeals
Commissioners
to continue
incorporated.

6. Notwithstanding any repeal effected by this Act the several persons who from time to time are under this Act or any subsequent Act amending or extending this Act holding office as Commissioners shall (subject to the provisions of any such subsequent Act) continue incorporated by the name of "the Tees Conservancy Commissioners" and by that name continue and be a body corporate with perpetual succession and a common seal and by that name may sue and be sued and shall have power to purchase take on lease hold and dispose of land and other property for the purposes of the Tees Conservancy Acts 1852 to 1956 and to put into execution the provisions of those Acts and the Tees Conservancy Superannuation Scheme Act 1953 so far as they are to be executed by the Commissioners.

Appointment
of Commis-
sioner by
shipping
association.

7.—(1) (a) On the ninth day of November nineteen hundred and fifty-six and on the ninth day of November in every second year thereafter the shipping association shall appoint a person being a member of that association to be a Commissioner for the ensuing two years.

(b) If on any ninth day of November on which an appointment should be made under paragraph (a) of this subsection the shipping association fail to appoint a person to be a Commissioner the shipping association shall make such appointment within seven days of that day.

(2) All appointments by the shipping association under this section shall be made in writing under the hand of the secretary of that association and notice thereof shall be given to the clerk of the Commissioners.

(3) Every person so appointed as a Commissioner under the foregoing provisions of this section shall hold office until and including the eighth day of November in the second year after his appointment unless he shall previously die resign or become disqualified to be a Commissioner and on the expiry of his term of office shall if qualified be eligible for reappointment.

(4) Every person from time to time appointed under this section to be a Commissioner shall be resident in the southern division of the county of Durham or in the north riding of the county of York.

(5) Section 15 (As to supplying vacancies in case of Commissioners appointed under this Act and ceasing to act) of the Act of 1946 shall apply to a Commissioner appointed by the shipping association under this Act as if he were a person appointed to be a Commissioner under the Act of 1946.

8. On and after the ninth day of November nineteen hundred and fifty-six ten Commissioners shall be elected by the two classes and in the proportions following (that is to say):— By whom Commissioners to be elected.

Four by the shipowners of the ports of the Tees;

Six by the dues payers for the ports of the Tees.

9. The clerk to the Commissioners shall on or before the first day of September nineteen hundred and fifty-six and in every second year thereafter apply to the proper officers of customs and excise for the ports of Middlesbrough and Stockton and those officers shall respectively on or before the fifteenth day of that month make and sign and deliver to the Commissioners respective lists of the shipowners of the ports of the Tees as registered on the thirtieth day of June in that year with the respective names and registered tonnage of the vessels in respect of which they are registered. Officers of customs and excise to make lists of registered shipowners.

10. Every person appearing by any such list to be a registered shipowner in the ports of the Tees to the amount or aggregate amount of one hundred tons shall be entitled to one vote for the first or only one hundred tons and to one additional vote for every two hundred and fifty tons above the first one hundred tons not exceeding in the whole six votes. Scale of votes for registered shipowners.

11. On or before the first day of September nineteen hundred and fifty-six and in every second year thereafter the Commissioners shall make a register to be called the register of dues payers for the ports of the Tees and therein shall enter the names of all persons who have within the year ending on the thirtieth day of June in that year paid within the ports of Middlesbrough and Stockton Tees dues to the amount in the whole of one hundred pounds and in the register they shall enter the total sums paid by every such person within the year ending as last aforesaid. Commissioners to make register of payers of dues.

12. Every dues payer for the ports of the Tees shall be entitled to vote at any election of Commissioners by the dues payers for the ports of the Tees in respect of the amount of dues appearing by the register of dues payers for the ports of the Tees to have been paid by such dues payer according to the following scale:— Scale of votes for dues payers for the ports of the Tees.

Where the dues paid—

amount to £100 but do not amount to £350					1 vote
„	350	„	„	850	2 votes
„	850	„	„	1,350	3 „
„	1,350	„	„	1,850	4 „
„	1,850	„	„	2,350	5 „
„	2,350	„	„	2,850	6 „
„	2,850	„	„	3,350	7 „
„	3,350	„	„	3,850	8 „
„	3,850	„	„	4,350	9 „
„	4,350	„	„	4,850	10 „
„	4,850	„	„	5,350	11 „
„	5,350	„	„	5,850	12 „
„	5,850	„	„	6,350	13 „
„	6,350	„	„	6,850	14 „
„	6,850	„	„	7,350	15 „
„	7,350	„	„	7,850	16 „
„	7,850	„	„	8,350	17 „
„	8,350	„	„	8,850	18 „
„	8,850	„	„	9,350	19 „
„	9,350 or more			20 votes (maximum)	

Clerk to
Commissioners
to make lists.

13. On or before the first day of October nineteen hundred and fifty-six and in every second year thereafter the clerk to the Commissioners shall from the lists and register aforesaid make up two separate alphabetical lists of the persons entitled to vote as shipowners of the ports of the Tees and as dues payers for the ports of the Tees respectively with the number of votes to which they are respectively entitled and on or before the same day shall cause each such list to be printed and to be posted on the outer door of the custom houses of the ports of Middlesbrough and Stockton and printed copies of each such list shall be kept at the principal office of the Commissioners for public inspection and on payment of such sum as the Commissioners think reasonable not exceeding sixpence the Commissioners shall deliver a printed copy of each list to every person requiring it.

Votes of
partners.

14. In every case of several persons being registered as shipowners in partnership whether as part owners or as sole owners or as both and in every case of several persons in partnership being dues payers for the ports of the Tees they respectively shall with respect to the scale of votes be deemed one person and one of such partners authorised in writing by the other partner or by a majority of them or where no such writing is exhibited the partner whose name stands first among such partners shall alone be entitled to exercise on behalf of the partners their right of voting at the election of Commissioners under this Act.

15. On or within one month before the first day of October nineteen hundred and fifty-six and in every second year thereafter the Commissioners shall appoint two of their number to be two of the revisers of the lists of electors entitled to vote as shipowners of the ports of the Tees and as dues payers for the ports of the Tees respectively And those two Commissioners before the seventh day of the same month of October (and in their default the Minister) shall appoint a third person being on one of the lists of electors for that year or being a member of a firm or company which is named in the list of electors for that year to be the third of those revisers and to be their chairman. Revisers of lists to be appointed.

16. The revisers shall during the seven days next after such seventh day of October revise at the Commissioners' office the lists of electors giving not less than three days' notice by advertisement in one or more newspapers circulating within the ports of Middlesbrough and Stockton of every such revision But in the case of the death or failure to act or continue to act of any one or two of the revisers the others or other of them shall (and in the case of the death or failure to act or continue to act of all the revisers a person appointed by the Minister shall) make or complete the revision. Revision of lists.

17. On every such revision any person whose name is not inserted in a list of electors may in person or by his agent claim to have his name inserted therein and any person whose name is inserted therein may in person or by his agent claim to have the number of votes attributed to him therein corrected and may object to any other person as not being entitled to have his name retained therein or as not being entitled to the number of votes attributed to him therein. Claims and objections before revisers.

18. The revisers shall retain in any list any name or number of votes objected to if the objection is not established to their satisfaction and shall insert therein the name of any person shown to their satisfaction to be entitled to have his name inserted therein and shall retain therein the name of every person to whom and every number of votes to which an objection is not made and shall strike out therefrom the name of every person shown to their satisfaction to be dead or not to be entitled to have his name inserted therein and shall correct therein the number of votes attributed to any person shown to their satisfaction to be entitled to any other number of votes than the number attributed to him. Revisers to correct lists.

19. The decision of the revisers or the majority of them with respect to a list shall be final and conclusive and the revisers shall forthwith after every revision sign their names at the foot of each list revised and deliver or forward the same to the clerk of the Commissioners. Revisers to sign lists.

Production
to revisers of
books etc.

20. For the revision of the lists the Commissioners shall produce at their office to the revisers the books and accounts of the Commissioners and the lists and register and shall afford to them all reasonable and proper facilities.

Evidence of
revised lists.

21. Every list purporting to be a list revised and signed as by this Act provided shall be evidence of the same being a list duly made and revised until the contrary is shewn.

Continuance of
revised lists.

22. Every revised list shall be in force until the revision of the then next list and the persons whose names appear on the revised list from time to time in force shall be the persons entitled to vote at elections of Commissioners under this Act and shall at every such election be respectively entitled to such number of votes as appears by the revised list.

Revised lists
to be printed
and published.

23. Every revised list shall forthwith after the revision thereof be printed and published by the Commissioners and all persons shall be entitled to buy the same at such price not exceeding sixpence a copy as the Commissioners think reasonable.

Time of
meetings for
election of
Commis-
sioners.

24. For the election from time to time of Commissioners meetings of the two classes of electors shall be held separately on the last Tuesday in October nineteen hundred and fifty-six and on the last Tuesday in October in every second year thereafter between the hours of eleven in the forenoon and four in the afternoon at such place or places as the Commissioners appoint and shall be convened by the clerk to the Commissioners by not less than seven nor more than fourteen days' notice by advertisement in one or more newspapers circulating within each of the ports of Middlesbrough and Stockton specifying the time and place and object of the meeting.

Procedure at
meetings.

25. At every such meeting the persons present at the commencement of the meeting personally or by proxy appointed in writing shall forthwith appoint a chairman and the person so appointed shall receive the votes and shall act in all other respects as chairman of the meeting and the only business to be transacted or discussed at any such meeting shall be the election by the meeting of the persons or person to be elected Commissioners thereat.

Printed copies
of lists to be
conclusive.

26. The clerk to the Commissioners shall cause to be supplied to each such meeting a printed copy of the list of persons qualified to vote thereat with his signature appended thereto in writing or in print and that copy shall for all purposes of the meeting be conclusive evidence of the matters therein appearing.

Qualification
of Commis-
sioners.

27. Every person elected Commissioner under this Act shall be resident in the southern division of the county of Durham or in the north riding of the county of York.

28. The following provisions shall apply in relation to the election of Commissioners under this Act:—

Mode of
voting for and
election of
Commis-
sioners.

(1) The Commissioners in each class shall be elected by a majority of votes given in writing by the electors of that class present either personally or by proxy at a meeting held in accordance with section 24 (Time of meetings for election of Commissioners) of this Act:

(2) Every elector in each class so present and voting shall place one "X" against each of the names of the total number of candidates to be elected by the class to which the elector belongs or any less number of such candidates for whom he wishes to vote and for the purpose of counting the votes in that class each "X" so placed shall be deemed to represent the total number of votes for which such elector is registered:

(3) In every case of an equality of votes the chairman of the meeting shall when requisite to decide the election have an additional or casting vote.

29. The appointment of a proxy shall be made by an instrument in writing (in the form given in the Second Schedule to this Act with such variations as circumstances require) signed by the appointer or if the appointer is an incorporated company sealed with the common seal of the company and in all cases attested by one witness at least.

Regulations
respecting
proxies.

An instrument appointing a proxy shall not be used at any election unless it has been deposited at the office of the Commissioners not less than forty-eight hours before the time appointed for that election.

An instrument appointing a proxy shall not be valid except for the election next after the date of its execution.

30. The result of every election shall immediately after the conclusion of the meeting at which it takes place be communicated in writing by the chairman of the meeting to the clerk to the Commissioners.

Result of
election to
be com-
municated
to clerk.

31. The term of office of the Commissioners elected by shipowners of the ports of the Tees and the dues payers for the ports of the Tees under this Act shall commence on the ninth day of November in the year of election and shall continue for two years and every such Commissioner going out of office shall be eligible for re-election.

Duration of
office of
elected
Commis-
sioners.

32. Notwithstanding anything in this Act a person shall not be eligible at any election by shipowners of the ports of the Tees or the dues payers for the ports of the Tees of a Commissioner under this Act unless five clear days at least before the day of election he has been proposed by an elector and seconded

Nomination of
candidates.

by another elector and has intimated his willingness to be elected by a joint writing under the hands of his proposer and seconder and himself delivered at or sent by registered letter to the principal office of the Commissioners and three clear days at least before the day appointed for the election the Commissioners shall publish the names of the candidates by advertisement in one or more newspapers circulating within the ports of Middlesbrough and Stockton.

Filling up
of extra-
ordinary
vacancies.

33. In every case of an extraordinary vacancy happening by reason of death or resignation of a Commissioner or otherwise in the office of Commissioner elected by shipowners of the ports of the Tees or the dues payers for the ports of the Tees under this Act the Commissioners shall convene a special meeting of the proper class of electors for the election of a Commissioner to supply the vacancy and the proceedings at all such special meetings shall be conducted as nearly as may be in the same manner as the proceedings at biennial meetings for election and every person elected a Commissioner under this section shall be entitled to hold office as long only as the Commissioner in whose stead he is elected would have been entitled to continue in office.

Expenses of
elections.

34. The expenses incurred by the Commissioners or their clerk of and incident and preparatory to the obtaining and preparation of lists and registers and of holding elections directed by this Act or otherwise relative to such elections including the expenses of the proper officers of customs and excise for the ports of Middlesbrough and Stockton shall be paid by the Commissioners as part of their ordinary expenses.

Costs of Act.

35. The costs charges and expenses preliminary to and of and incidental to the preparing of applying for and the obtaining and passing of this Act shall be paid by the Commissioners.

SCHEDULES

The SCHEDULES referred to in the foregoing Act

THE FIRST SCHEDULE

Enactments relating to the constitution and election of Commissioners repealed by this Act.

The Act of 1946—

Sections 7 8 16 17 18 19 20 21 22 23 24 25 26 27 28 29 30 31
32 33 34 35 36 37 38 39 40 41 42 and 43.

The Act of 1954—

Section 4.

THE SECOND SCHEDULE

FORM OF PROXY PAPER

THE TEES CONSERVANCY ACT 1956

I A.B. of
being entitled to vote at the election of a Commissioner to represent
the [shipowners of the ports of the Tees OR (as the case may be)
the dues payers for the ports of the Tees] at the election to be held
on the day of 19
do by this writing appoint C.D., of
to be my proxy to vote on my behalf at that election.

(Signed) A.B.

Witness X.Y.

of

Table of Statutes referred to in this Act

Short title	Session and chapter
Tees Conservancy Act 1946	9 & 10 Geo. 6 c. liii
Tees Conservancy Superannuation Scheme Act 1953	1 & 2 Eliz. 2 c. xvi
Tees Conservancy Act 1954	2 & 3 Eliz. 2 c. xxvi
Tees Conservancy (Deposit of Dredged Material) Act 1954	2 & 3 Eliz. 2 c. xl

PRINTED BY JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON : PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 1s. 0d. net

PRINTED IN GREAT BRITAIN

(37321)